

		Defendant acted with malice, oppression, and knowing disregard for safety. (FAC ¶¶ 29-34.) These allegations are sufficient at this pleading stage to indicate a “conscious disregard of probable injury to others”. (<i>Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82, 90.) The allegations in this complaint go beyond just driving under the influence. The FAC alleges intoxicated driving, a collision, injury, flight from the scene, and abandonment of Plaintiff. Defendant shall file an answer to the FAC within 15 days after service of notice of ruling. Plaintiff to give notice.
50	Bayarsaikhan vs. Headlands Residential Series Owner Trust, Series E 25-01464240	Motion to Consolidate Plaintiffs Bayarmanlai Bayarksaikhan and Khulan Buyanbat’s motion to consolidate two matters is DENIED. Preliminarily, Plaintiffs fail to comply with the procedural requirements set forth in Rules of Court, Rule 3.350, subd. (a)(1)(A)-(C). The Notice of Motion is deficient as it does not list all named parties in each case, the names of those who have appeared, or the names of their respective attorneys of record. (See Rules of Court, Rule 3.350, subd. (a)(1)(A).) The Notice also fails to contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first. (See Rules of Court, Rule 3.350, subd. (a)(1)(B).) Further, the Notice does not appear to have been filed in the UD action. (See Rules of Court, Rule 3.350, subd. (a)(1)(C).) Moving forward on the merits, when there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). There are two types of consolidation, a complete consolidation which results in a single action and a consolidation of separate actions for trial. (<i>Sanchez v. Superior Court</i> (1988) 203 Cal.App.3d 1391, 1396.) As relevant here, when cases are consolidated completely, which is usually ordered where the parties are identical and the causes could have been joined, the pleadings are considered merged, one set of findings is made, and one judgment is rendered. (Id.) Plaintiffs contend that consolidation of this matter with the UD matter is proper because the cases involve common issues of law and fact, relying on <i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367. The trial court has the power to consolidate an unlawful detainer proceeding with a simultaneously pending action in which title to the property is in issue, as a successful claim of title by the tenant would defeat the landlord's right to possession. (<i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367, 385.) Where a <u>UD action</u> and a <u>title action</u> are both pending, the trial court in which the unlimited action is pending may stay the UD action until the issue of title is resolved in the unlimited action, or it

		may consolidate the actions. (Ibid.) But a complex title issue should not be left to be tried in the UD case, as defects in the UD plaintiff's title are not properly raised in a summary proceeding for possession, nor concluded by the judgment. (Ibid.) Instead, when complex issues of title are involved, the parties' constitutional rights to due process in the litigation of those issues cannot be subordinated to the summary procedures of unlawful detainer. (Id. at 391.) Trial courts need not necessarily grant every application for consolidation of a UD proceeding with a pending quiet title action, no matter how straightforward the issues or the circumstances: it may instead sever and separately try the issue of title to the property, while assuring the availability of fair compensation to the plaintiff for any delay in acquiring possession under Code of Civ. Proc. § 1170.5(c) [court may order defendant to pay contract rent into court during delay of trial for defendant's benefit].) (Id. at 393.) But here, this instant unlimited civil matter does not involve a claim for quiet title. Instead, the operative SAC alleges the following causes of action: (1) violation of civil code § 2924.17, (2) fraudulent misrepresentation, (3) tortious interference with contractual relations; (4) slander of title; and (5) intentional infliction of emotional distress. Other than the first cause of action for violation of statutory compliance, the remaining four causes of action sound in tort, i.e. fraudulent misrepresentation, tortious interference with contractual relations; slander of title; and intentional infliction of emotional distress. There is no cause of action for quiet title. The closest cause of action is the fourth cause of action for slander of title. But a cause of action for slander of title is not the same as a quiet title action under California law. These are two separate and distinct causes of action with different elements, purposes, and remedies, and litigants routinely plead them as separate claims in the same complaint. A quiet title action is a statutory proceeding brought to establish title against adverse claims to real or personal property or any interest therein. (See Code of Civ. Proc. § 760.020.) Its purpose is to resolve competing claims to ownership or possessory rights in property and to judicially confirm the plaintiff's title. Slander of title, by contrast, is a <i>tort</i> action for redress of an invasion of a particular property right. The main thrust of the cause of action is protection from injury to the salability of property (<i>Howard v. Schaniel</i> (1980) 113 Cal.App.3d 256, 264.) The cause of action is grounded in the law of injurious falsehood, not in the establishment of ownership. (See <i>Truck Ins. Exchange v. Bennett</i> (1997) 53 Cal.App.4th 75, 84.) The elements for slander of title include: “(1) a publication, (2) without privilege or justification, (3) falsity, and (4) direct pecuniary loss.” (<i>Sumner Hill Homeowners’ Assn., Inc. v. Rio Mesa Holdings, LLC</i> (2012) 205 Cal.App.4th 999, 1030.) Moreover, malice — express or implied — is an essential element that is embedded in the second element of a cause of action for damages for slander of title. (<i>Howard v. Schaniel</i>, supra, 113 Cal.App.3d at 263-264.) A quiet title action, by contrast, requires no showing of a false publication, malice, or pecuniary loss. It is simply a proceeding commenced by filing a complaint to establish title against adverse claims (See, Code of Civ. Proc. §760.020.) The remedies available under each action further distinguish them. In a slander
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		of title action, the elements of damage are the loss caused by impairment of vendibility and the cost of clearing the title, including attorney fees and litigation expenses reasonably necessary to remove the doubt cast upon the plaintiff's property rights (<i>Davis v. Wood</i> (1943) 61 Cal.App.2d 788, <i>Sumner Hill Homeowners' Assn., Inc. v. Rio Mesa Holdings, LLC</i> (2012) 205 Cal.App.4th 999.) A quiet title action, by contrast, seeks a judicial declaration of ownership or interest in property — it does not provide monetary damages for the tortious conduct of a defendant. As pointed out by Intervenor Mai Ta (the plaintiff in the UD action against Bayarksaikhan and Buyanbat), the only defense presented in the UD case is as to title, and title is not at issue in the operative SAC of the unlimited civil matter. Title of the Subject Property is held by Mai Ta, who purchased the Subject Property at a foreclosure sale. Other than the first cause of action for violation of statutory compliance, the other causes of action sound in tort, i.e. fraudulent misrepresentation, tortious interference with contractual relations; slander of title; and intentional infliction of emotional distress. These causes of action having nothing to do with quieting title. Thus, there are no common questions of law. There are also no common questions of fact. The instant action seeks monetary damages for wrongful foreclosure against various defendants and involve facts that culminated in the foreclosure sale. Intervenor Mai Ta purchased the Subject Property in the foreclosure sale. As far as the Court has been made aware, Mai Ta has no connection to any of the pre-foreclosure proceedings. The UD action is premised on Mai Ta's ownership interest in the Subject Property. Mai Ta is the current owner of the Subject Property and Bayarksaikhan and Buyanbat have refused to vacate the premises, which gives rise to the UD action. Accordingly, these cases do not involve common questions of law or fact and consolidating these cases would <u>expand</u> the issues for trial and would reduce trial court efficiency rather than enhancing it, which is contrary to the purpose of consolidation. Mai Ta also argues prejudice in being tied to this wrongful foreclosure case for years, whereas the UD action is a summary procedure. The reply asserts that all prejudice will be mitigated because Bayarksaikhan and Buyanbat have offered to pay "reasonable use and occupancy" of the Subject Property during the pendency of the litigation. But it should be up to Mai Ta, the owner of the property, to dictate how they choose to exercise their property rights. Plaintiffs further argue that if the matters are not consolidated and the UD action is not stayed, and Plaintiffs are evicted, they will suffer irreparable harm because they will be displaced of their primary residence based on a foreclosure they have alleged was unlawful. But again, the relief sought in the SAC does not seek to void the sale, nor do they seek the return of their ownership rights to the home. Instead, Plaintiffs seek monetary relief for the permanent loss of title to the Subject Property. So, while Plaintiffs contend ownership interests are too complicated to adjudicate in the UD action, their ownership interests will not be adjudicated in this unlimited civil matter. Even if Plaintiffs were to ultimately prevail on every cause of action asserted in the SAC, the end result would be monetary damages, not the return of title and Plaintiffs' remaining in the Subject Property. Based upon the foregoing, the Court finds that consolidation of the two matter is not appropriate and DENIES the motion to consolidate.
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51	Matthews vs. Global Auto Trend, Inc. 22-01252051	Motion to Enforce Settlement The Motion to Enforce Settlement brought by Defendant Pacific City Bank is DENIED. Under section 664.6, “[i]f parties to pending litigation stipulate, in writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. (Civ. Proc. Code, § 664.6, subd. (a).) There is no dispute that a valid and enforceable written Settlement Agreement was entered into, between the parties. (See ¶4 of An Declaration; See also Opposition: 5:14-15 [“Ms. Matthews’ position has always been that the settlement agreement is valid and enforceable.”]) Noting that Plaintiff previously sought to enforce the Settlement Agreement, Defendant argues that Plaintiff cannot “selectively disavow it as to PCB” (Motion: 6:4-6); however, Plaintiff makes no such attempt. Instead, Plaintiff disputes whether, under the terms of the agreement, Defendant is entitled to judgment. Defendant seeks a determination “that Plaintiff’s claims against PCB were released under the Settlement Agreement” (Motion: 1:10-11); however, per the plain language of the Settlement Agreement, release was contingent upon receipt of “all of the consideration set forth in this Agreement.” (¶4 of An Declaration and Exhibit 1 thereto, at §7.) It undisputed that “Global Auto breached the Settlement Agreement by failing to make the required payments to both Plaintiff and PCB.” (Motion: 3:5-6; See also ¶6 of Declaration of An Declaration and ¶11 of Matthews Declaration.) In light of the above, the order sought by Defendant is not “pursuant to the terms of the settlement,” as required. “[T]he power of the trial court under Code of Civil Procedure section 664.6...is extremely limited. [¶]...The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.” (<i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 790.) “[T]he trial court is under a duty to render a judgment that is in exact conformity with an agreement or stipulation of the parties...It is not the province of the court to add to the provisions thereof [citations]; to insert a term not found therein [citations]; or to make a new stipulation for the parties.” (<i>Id.</i> at p. 792.) Similarly, in considering approval of a settlement under Code of Civil Procedure section 664.6, a court cannot “add to or modify an express term of the settlement.” (<i>Leeman v. Adams Extract & Spice, LLC</i> (2015) 236 Cal.App.4th 1367, 1375.) Here, entering judgment in favor of Defendant based on a finding Plaintiff’s claims were released would essentially rewrite the terms of the Settlement Agreement, to remove the condition precedent of payment. Defendant acknowledges the above, within its Reply: “PCB acknowledges that as a matter of contract interpretation, the release was contingent upon payment and that Global’s nonperformance prevented the release from becoming operative.” (Reply: 2:15-17.)
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